

IN THE COURT OF APPEAL (CIVIL DIVISION)

Case No: CA-2025-000412

B E T W E E N:

R (HARRISON) V SECRETARY OF STATE FOR JUSTICE

RESPONDENT'S SKELETON ARGUMENT

Counsel: Sarah Montgomery KC (Landmark Chambers)

SUMMARY OF POSITION

1. The Appellant's challenge should be dismissed. The Court did not apply an incorrect legal test for violation of Article 2 Protocol 1 ECHR. The Court correctly found that the Appellant had not been denied effective access to educational facilities despite difficulties faced, and that the SSJ had committed significant resources to enabling distance learning participation including 25 hours a week in the Education Department with computer and internet access.

FACTS RELIED ON

2. The Appellant is serving a determinate sentence at HMP Wandsworth following conviction for robbery with a sentence of 8 years.
3. He commenced serving his sentence in 2019 and is eligible for release in 2027.
4. The Appellant enrolled in an Open University BA Social Sciences degree in September 2023.
5. He completed his second year of study prior to the April 2025 hearing despite the restrictions challenged.
6. The Appellant received significant support at HMP Wandsworth including a Distance Learning Coordinator, access to up to 25 hours per week in the Education Department library, and access to a shared laptop computer.
7. The Appellant benefited from the standard education budget allocation and had access to six books from the prison library at a time (the standard limit for distance learning students).
8. A meeting was held on 20 November 2024 between the Appellant's OU tutor, Student Support Officer, and prison education staff to discuss support arrangements and the implementation of the 50-page monthly limit.
9. The prison implemented the 50-page limit following a security incident on 15 September 2024 involving unauthorized materials being smuggled into the prison disguised as course materials.

CONTENTIONS / GROUNDS OF APPEAL

10. The Court did not apply an incorrect legal test for A2P1 violation. The correct test is whether the Appellant was denied effective access to such educational facilities as the state provides.

11. The Court recognised difficulties the Appellant faced but found that SSJ committed appropriate resources to enable participation in distance learning within security constraints.

12. The 50-page monthly limit was found unlawful as domestic administrative law but not as an A2P1 breach. The Court correctly found no A2P1 breach as the Appellant was not denied effective access to education.

13. The Court did not make an unlawful case management decision. The Judge excluded late evidence submitted just prior to hearing concerning alleged issues at a new prison facility.

14. The Open University course structure is specifically designed for distance learning and prisoners can complete courses with limited physical materials through online resources and provided course packs.

15. The prison dedicated resources to address operational issues as they arose, including enhanced library access hours, liaison with OU tutors, and facilitating alternative means of accessing course content.

16. The Judge's finding that strategies used were "sufficient to afford lawful access to education in the prison context" was correct and based on sound factual findings.

17. There was no evidence before the High Court that the 50-page limit or reduced library access meant the Appellant was denied effective access to his OU course, particularly given alternative means of accessing materials.

18. The Appellant successfully completed his second year examinations, achieving passing grades in all modules, which demonstrates effective access was maintained.

LEGAL BASIS

19. The Defendant/Respondent relies upon the following legal provisions:

- Article 2 Protocol 1 to the European Convention on Human Rights - right to education
- A v Head Teacher and Governors of Lord Grey School [2006] 2 AC 363 - pragmatic test of effective access to educational facilities
- A v Essex County Council [2011] 1 AC 280 - basic minimum standard, overall result approach
- Belgian Linguistics Case (No.2) (1968) 1 EHRR 252 - no right to particular type of education
- R (Tigere) v Business, Innovation & Skills Secretary [2015] 1 WLR 3820 - no right to public financial support
- Sahin v Turkey (2007) 44 EHRR 5 - obligation to afford effective access once institutions established
- Velyo Velez v Bulgaria (2014) 37 BHRC 406 - no obligation to organize facilities where not already in place; restrictions must not be arbitrary
- Mehmet Arslan and Orhan Bingol v Turkey (App.Nos. 47121/06, 13988/07, 34750/07) - complete denial of computer/internet access for vital education violated A2P1
- Emine Arac v Turkey (2008) - right not absolute, subject to margin of appreciation
- Prison Rules 1999, Rule 17 - education facilities in prisons

- PSI 32/2012 - Prisoner Education Policy Framework
- Apprenticeships, Skills, Children and Learning Act 2009, s.86(1)(b) - duty to provide education to prisoners

RELIEF SOUGHT

20. The Defendant/Respondent respectfully requests that this Honourable Court:

- (a) Dismiss the Appeal
- (b) Uphold the Judge's case management decision and decision regarding A2P1
- (c) Confirm that the domestic law unlawfulness finding does not automatically establish A2P1 breach

AUTHORITIES CITED

- *A v Head Teacher and Governors of Lord Grey School* [2006] 2 AC 363; [2006] 2 W.L.R. 690
- *A v Essex County Council* [2011] 1 AC 280; [2010] 3 W.L.R. 509
- *Belgian Linguistics Case (No.2)* (1968) 1 EHRR 252
- *R (Tigere) v Business, Innovation & Skills Secretary* [2015] 1 WLR 3820; [2016] 1 All E.R. 191
- *Sahin v Turkey* (2007) 44 EHRR 5
- *Velyo Velev v Bulgaria* (App No 16032/07) ECHR 27 May 2014
- *Mehmet Arslan and Orhan Bingol v Turkey* (App.Nos. 47121/06, 13988/07 and 34750/07) (18 June 2019)
- *Emine Arac v Turkey* (App No 9907/02) ECHR 23 September 2008
- *Kalda v Estonia* (2016) 42 BHRC 145 (App No 17429/10)
- *Jankovskis v Lithuania* (17 January 2017) (App. No. 21575/08)
- *Catan v Moldova and Russia* (2013) 57 EHRR 4
- *R (Dolan) v Secretary of State for Health and Social Care* [2020] EWCA Civ 1605, [2021] 1 WLR 2326
- *R (ZB and DB) v Croydon* [2023] EWHC 489 (Admin)
- *R (Kebede) v Secretary of State for BEIS* [2013] EWHC 2396 (Admin)
- *R (Hurley and Moore) v Secretary of State for Business Innovation and Skills* [2012] EWHC 201 (Admin)
- *Royal & Sun Alliance Insurance plc v T & N Ltd* [2002] EWCA Civ 1964
- *R (Osborn) v Parole Board* [2013] UKSC 61

CHRONOLOGY OF EVENTS

Date	Event
2019-06	Appellant commenced serving sentence at HMP Wandsworth
2023-09-01	Appellant enrolled in Open University BA Social Sciences degree
2024-09-15	Security incident at HMP Wandsworth involving unauthorized materials
2024-09-22	Governor implements 50-page monthly limit on printed materials
2024-09-30	Library access hours reduced from 3 hours weekly to 1 hour fortnightly due to staffing constraints
2024-10-15	Appellant submits internal complaint regarding educational restrictions
2024-11-08	Complaint rejected by Governor; restrictions upheld on security grounds

2024-11-20	Meeting between OU tutor, Student Support Officer and prison education staff
2024-12-02	Pre-action protocol letter sent to Respondent
2025-01-15	Judicial review claim issued in Administrative Court
2025-03-18	Substantive hearing before Foster J in Administrative Court
2025-04-25	Judgment finding unlawful administrative action but no A2P1 breach
2025-05-15	Permission to appeal granted by Nugee LJ
2025-06-10	Hearing date set for Court of Appeal

Filing Date: 2025-06-15

Sarah Montgomery KC (Landmark Chambers)